

tive Branch's operations²³ and to preserve historically significant papers and tape recordings for posterity.²⁴ Both these purposes are legitimate and important. Yet, there was no serious suggestion by Congress that the operations of the Executive Branch would actually be impaired unless, contrary to nearly 200 years' past practice, all Presidential papers of the one named incumbent were required by law to be impounded in the sole control of Government agents. The statute on its face, moreover, does not purport to address a particularized need, such as the need to secure Presidential papers concerning the Middle East, the SALT talks, or problems in Panama.²⁵ Indeed, the congressionally perceived "need" is a

²³ Administrative efficiency is obviously a highly desirable goal. See, e. g., *Dixon v. Love*, 431 U. S. 105, 114 (1977); *Mathews v. Eldridge*, 424 U. S. 319, 347-349 (1976). However, I am constrained to recall that "administrative efficiency" has not uniformly been regarded as of "overriding importance." Indeed, claims of administrative efficiency have been swiftly dismissed at times as mere "bald assertion[s]." *Richardson v. Wright*, 405 U. S. 208, 223 (1972) (BRENNAN, J., dissenting). Numerous other opinions have held that individual interests, including the right to welfare payments, "clearly outweigh" government interests in promoting "administrative efficiency," *Goldberg v. Kelly*, 397 U. S. 254 (1970) (opinion of BRENNAN, J.). And, Mr. JUSTICE MARSHALL in *Shapiro v. Thompson*, 394 U. S. 618, 634 (1969), stated that when "fundamental" rights are at stake, such as the "right to travel," government must demonstrate a "compelling" interest, not merely a "rational relationship between [the underlying statute] and [the] . . . admittedly permissible state objectives"

²⁴ The initial interest in preserving the materials for judicial purposes has diminished substantially. Since the Special Prosecutor has disclaimed any further interest in the materials for purposes of possible criminal investigations, the only conceivably remaining judicial need is to preserve the materials for possible use in civil litigation between *private parties*. The admittedly important interests in the enforcement of the criminal law, recognized in *United States v. Nixon*, are no longer pressed by the Government.

²⁵ If there were a particularized need, the statute suffers from greater overbreadth than others we have invalidated.